Constitutional Law, Cyber Law, IP Law & Professional Ethics — Last-Minute Notes

Built only from the merged slides (UL19BL204/UL19BA204, Faculty of Law). Four separate parts: Unit 1, Unit 2, Book 1 (Gandhi), Book 2 (Vivekananda). For the two books, every MCQ answer in the PDF's question banks appears below.

UNIT 1 — Introduction to the Constitution of India

Constitution & Constitutional Law

Reference material: Bare Act *The Constitution of India* (Universal's, 2020); **M P Jain** – *Indian Constitutional Law*; *The Oxford Handbook of the Indian Constitution* (Sujit Choudhry, Madhav Khosla, Pratap Bhanu Mehta). A Constitution shapes the **aspirations** of the country, the State's **fundamental political views** and its **social values**. **Constitutional Law is a public law**; it is the **source of power and exercise of power** in itself, and all laws of a country are structured within its limits. A Constitution is legal document(s) rooted in the **socio-political history** of a nation that also impacts its future. **Kinds:** written & unwritten; unitary & federal.

Written constitution (e.g. India; USA "We the People"): detailed provisions, **formal source** of all constitutional powers, **supreme/fundamental law**, organs of the State are its creation, **special amendment procedure**, **rigid**. **Unwritten constitution**: combination of regular legislations + **conventions**; the **Parliament/Legislature is sovereign**; e.g. **United Kingdom** — **Magna Carta 1215**, Provisions of Oxford 1258, Petition of Right 1628, Bill of Rights 1689.

"Constitution" and "Constitutional Law" are used interchangeably but differ: Constitutional Law = Constitution + Relevant Legislations + Constitutional Customs + Relevant Precedents. **Relevant laws** = laws specifically mandated by the Constitution (**Art 11, Art 17, Art 300**). **Constitutional customs/conventions** = **non-legal norms, not enforceable** as of right, followed by stakeholders; non-compliance attracts **public outcry** — e.g. appointment of **PM (Art 75)** and **CJI (Art 124)**. **Precedents**: **Judges Cases I–IV**, **UNR Rao v. Indira Gandhi (AIR 1971 SC 1002)** — all SC/HC decisions that clarify, restate or reiterate the constitutional position.

Constitutionalism

Old concept, gained international traction in the **last 3–4 decades**. It is the idea that **government can and should be legally limited** in its powers and its authority/legitimacy depends on observing these limits (linked to **Rule of Law** and **John Locke's Social Contract** theory). It **limits the government and maximises governance** — e.g. written constitution, independent judiciary, judicial review, rule of law, separation of powers. A country can have a constitution but lack constitutionalism, and may have no constitution yet have constitutionalism. Elements listed: written constitution, supremacy of constitution, rigid amendment procedure, rule of law, separation of power, fundamental rights, judiciary, federalism, parliamentary government, universal adult suffrage.

Historical Background

Constitution **adopted 26 Nov 1949**, **came into force 26 Jan 1950**; legal history traced to **GoI Acts 1919 & 1935**. Timeline: EIC → **1857** First War of Independence → **1858** direct rule of British Crown → **Indian Councils Act 1861** (Indians not in councils) → **INC 1885** → **Indian Councils Act 1892** (some Indians included, but not in Executive Council) → **Minto-Morley Reforms 1909** (more representation in legislature but non-elected members were more; none in executive council; no solution to representation) → WW-I, Gandhi's return, trade union movement → **Montagu-Chelmsford Report** → **GoI Act 1919**.

GoI Act 1919: passed as a **token of gratitude for India's role in WW-I**; increased native participation; created **Diarchy** (Chelmsford-Montagu reform); **bicameral legislature at federal level**; **separate communal electorate**; **High Commissioner in London**; to be **reviewed after 10 years**. Followed by Jallianwala Bagh, Bhagat Singh, Poorna Swaraj, **Simon Commission** (slide: 1930). **GoI Act 1935**: review of 1919 Act; **abolished diarchy**; **Federation of India** (didn't materialise); almost independent **parliamentary government in provinces**; federal executive, legislature, judiciary. Then

WW-II; INC did not participate in elections; Muslim League's **Lahore Resolution**. **Cabinet Mission / Cripps Mission** set up the Constituent Assembly.

Constituent Assembly

Idea proposed in **1934 by M. N. Roy**; August Offer and Cabinet Mission. **1946 election**: **389 seats** (292 provinces, 93 princely states, 4 Chief Commissioner provinces) — united India. After Two-Nation theory and **Indian Independence Act (18 July 1947)**, CA redrawn to **299 delegates**; worked **114 days over 2 yrs 11 months 18 days**. **9 Dec 1946** first meeting; **13 Dec 1946 Objective Resolution**; **22 July 1947** National Flag adopted; **29 Aug 1947 Drafting Committee** — Chairman **Dr B. R. Ambedkar** + 6 members: K. M. Munshi, Muhammed Saadulah, Alladi Krishnaswamy Iyer, Gopala Swami Ayyangar, N. Madhava Rao, T. T. Krishnamachari.

Committee	Head	Committee	Head
Drafting	B. R. Ambedkar	Rules of Procedure	Rajendra Prasad
Union Power	J. Nehru	States (negotiating with states)	J. Nehru
Union Constitution	J. Nehru	Steering	Rajendra Prasad
Provincial Constitution	V. Patel	Ad hoc Committee on National Flag	Rajendra Prasad
Advisory Cttee on FRs, Minorities, Tribal & Excluded Areas	V. Patel	Functions of the CA	G. V. Mavlankar
– FR Sub-Committee	J. B. Kripalani	House	G. Pattabhi Sitaramayya
– Minorities Sub-Committee	Harendra Coomar Mukherjee	Language	Moturi Satyanarayana
– NE Frontier Tribal & Assam Excluded Areas	Gopinath Bordoloi	Order of Business	K. M. Munshi
– Excluded Areas (other than Assam)	A. V. Thakkar		

Salient Features (15)

Written constitution · Supremacy of Constitution · Rigid amendment · Rule of Law · Separation of Power · Parliamentary government · Single citizenship · Single judiciary · Secularism · Federalism · Universal Adult Suffrage · FRs · DPSP · Fundamental Duties · Preamble.

Written: 471 Articles, 25 Parts, 12 Schedules (originally **395 Articles, 8 Schedules**); **longest constitution in the world** (US: originally **7 articles**, **27** added by amendments). Written = clear and unambiguous; detailed because of Centre–State division of power, responsibilities of organs, citizen–State relationship, enforcement of rights & duties, official language, citizenship, civil servants. **Supremacy**: **UK – supremacy of Parliament; India – supremacy of Constitution**; limits of powers/privileges set out clearly. **Single citizenship + single constitution** — a criticism of India's federal nature. **Single judiciary — three-tier unified judiciary**: Supreme Court → High Court → (a) *Metropolitan courts*: civil – City Civil Courts, Courts of Small Causes; criminal – Sessions Judge, Chief Metropolitan Court, Metropolitan Magistrate Courts; (b) *District & Sessions Court*: civil – District Court, Sub Court, Principal Junior Civil Judge Court, Munsif Court; criminal – Sessions Court, JM First Class, JM Second Class.

Rigid amendment: stability; "rigid yet flexible"; amended **105 times in ~70 years** yet procedure is difficult. **Art 368**: simple majority / special majority / **special majority + ratification by ½ of States**.

Separation of Powers (Legislature, Executive, Judiciary) — three tenets: same person not in more than one organ; one organ must not interfere with another; one organ must not exercise another's functions. Strict – US; looser – UK; India – unique model: division of powers, **no strict separation**. Legislature (law making) also does judicial functions (**impeachment, contempt of legislature, nullifying judicial decisions**) and executive functions (creating SC/HC, deciding their jurisdiction

& powers). Executive (law enforcing) also does legislative work (**delegated legislation, ordinance, emergency**) and judicial work (**pardon, Art 72**). Judiciary (dispute resolving) also makes rules (staff appointment, **Art 145**), judicial review, **Art 142** (law until suitable legislation is made), and judicial review of executive action.

Rule of Law — 3 components: **absence of arbitrary power, equality before law, independence of legal spirit protected by courts**; propounded while comparing **French and English** legal systems. In India: judicial review (**Art 13, 32, 226**), independence of judiciary (**Art 50**), equality & freedom (**Art 14–22**), Preamble, democratic government.

Federalism: political organisation uniting separate states within an overarching system while each keeps its integrity. Federal features: written constitution, supremacy, **division of power**, rigidity, independent judiciary. **Unique Indian federalism**: **Art 1 "Union of States"**, single citizenship, single constituent authority, long Concurrent List, Parliament can legislate on State List, emergency. Problems of US federalism: economic disparities, school-funding disparities, health-care access, conflicting judicial decisions, rights & responsibilities. SR Bommai v. Union of India (1994) 3 SCC 1 — federalism AND secularism are basic structure.

Parliamentary form: President = nominal head; real executive = Cabinet with PM; tenure at will of legislature; **collective responsibility**. **Presidential form**: chief executive is real head, irremovable by legislature, legislature cannot dictate him, cabinet appointed from the people. Presidential benefits: stable, able ministers, President outside party politics (parliamentary may lead to authoritarianism). Parliamentary benefits: responsible; PM may be removed by Parliament anytime. India chose parliamentary because: **familiar, harmony between legislature & executive, responsibility, assessment (daily & periodic)**.

Secularism: Western = separate religion and State; Indian = **equal respect for all religions**, not anti-religion/indifferent; word added by **42nd Amendment**, but principle already in **Arts 25–28, 15(1), 15(2), 16(2), 29(2), 325**; basic structure (SR Bommai). **Universal Adult Suffrage**: free & fair elections, **Art 326**; voting age **21 → 18 by 61st Amendment, 1988**.

FRs – Part III, Arts 12–35 (from **US Bill of Rights**); **DPSP – Part IV**, non-enforceable guiding principles (from **Irish Constitution**); **Fundamental Duties – Part IV-A**, added by **42nd Amendment** on **Swaran Singh Committee** report (from **Japanese Constitution**).

Preamble: modified version of the **Objective Resolution (13 Dec 1946)**. Tells who made the Constitution, its source, ultimate sanction, nature of polity, goals & objectives; three parts. Text: "**WE, THE PEOPLE OF INDIA** … **SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC** … JUSTICE social, economic and political; LIBERTY of thought, expression, belief, faith and worship; EQUALITY of status and opportunity; FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation; IN OUR CONSTITUENT ASSEMBLY this **26th November 1949** … ADOPT, ENACT AND GIVE TO OURSELVES". Union of the trinity — **Liberty, Equality, Fraternity**. Preamble has **no power — guiding principles only**. Is it part of the Constitution? — **In Re Berubari (AIR 1960 SC 845)** and **Kesavananda Bharati**.

Citizenship (Part II, Arts 5–11 + Citizenship Act 1955)

Part III speaks of **Persons (Art 14)** and **Citizens (Art 19)**. Citizenship governed by **Part II (Art 5–11)** and **Citizenship Act, 1955 (Act 57 of 1955)**. **Art 5** – citizenship at commencement: domicile in India AND (a) born in India, or (b) either parent born in India, or (c) ordinarily resident **≥ 5 years** before commencement. **Domicile = residence + intention to stay permanently**; by origin (father's domicile at birth; posthumous child – English vs Indian law) or by choice. **Art 6** – migrants **from Pakistan**: he/parent/grandparent born in India (GoI Act 1935) and (i) migrated **before 19 July 1948** and ordinarily resident since, or (ii) migrated **on/after 19 July 1948** and registered by an officer of the Dominion of India (needs **6 months** residence before application). **Art 7** – persons who migrated **to Pakistan after 1 March 1947** are not citizens, unless they returned under a **permit for resettlement** (then treated as migrating after 19 July 1948). **Art 8** – persons of Indian origin **residing outside India**, registered by Indian **diplomatic/consular representative**. **Art 9** – **voluntarily acquiring foreign citizenship** → not a citizen. **Art 10** – continuance of citizenship subject to Parliament's law. **Art 11** – **Parliament to regulate citizenship by law** (acquisition & termination). Laws listed: Citizenship Act (slide also says "1950"), Amendment Acts **2003, 2005** (Overseas Citizenship), **2019**. Modes: **Birth, Descent, Registration, Naturalisation, Incorporation of territory**.

"State" — Article 12

"State" includes: (a) **Government and Parliament of India**; (b) **Government and Legislature of each State**; (c) **all local or other authorities** within India or under control of the GoI — "unless the context otherwise requires". A statutory authority need not perform governmental/sovereign functions; **State can engage in trade (Art 298, 46)**. Test includes **power to give directions whose disobedience is punishable**. "Other authority" = public administrative agency or corporation with quasi-governmental powers administering a revenue-producing public enterprise. **Justice Shah** (separate concurring opinion): other authorities = those invested by law with power to exercise **sovereign powers**.

Article 13 & its Doctrines

13(1) – **pre-constitutional** laws inconsistent with Part III are void to the extent of inconsistency (void **from 26-01-1950**). **13(2)** – State shall not make law taking away/abridging FRs; **post-constitutional** laws are **void ab initio**. **13(3)(a)** – "law" includes **Ordinance, order, bye-law, rule, regulation, notification, custom or usage** having force of law (order – under statutory authority; bye-law – local authorities; rule – delegated legislation; regulation – day-to-day; notification – announcement). **13(3)(b)** – "laws in force" = laws made before commencement and not repealed. **13(4)** – Art 13 does not apply to **amendments under Art 368**.

Three doctrines: **Doctrine of Eclipse** – a pre-constitutional law inconsistent with FRs is **not wiped out**; it stays for rights/liabilities accrued before commencement and is **eclipsed/dormant** by the FR. **Doctrine of Severability** – law void **only to the extent of inconsistency**; if the invalid part is severable, the rest stands; if not separable, whole statute goes; **intention of the legislature** is the determining factor (a general principle of interpretation). **Waiver of FRs** – **no person can waive FRs, even voluntarily**.

Amendment cases: **Shankari Prasad v. UoI** – amendment is **not "law"** under 13(2); **Sajjan Singh v. State of Rajasthan** – followed it; **I.C. Golaknath v. State of Punjab** – **overruled** both; **24th Amendment, 1971**; **Kesavananda Bharati v. State of Kerala** – **Basic Structure**.

Right to Equality — Arts 14–18

Arts 14–18 (concentric: 14 ⊃ 15 ⊃ 16 ⊃ 17 ⊃ 18); specifically mentioned in Preamble. **Art 14**: State shall not deny to **any person equality before law** (**British**, **negative** concept, Rule of Law) or **equal protection of laws** (**US**, **positive** concept; not absolute equality — equals treated equally, unequals not equally). Art 14 **forbids class legislation, not reasonable classification**. Test: (1) **intelligible differentia** – not arbitrary, artificial or evasive; real & substantial distinction; (2) **rational nexus** with the object of the Act (e.g. **Sec 11, Indian Contract Act**); object must be lawful.

Arts 15 & 16 apply only to citizens. **15(1)** – no discrimination on grounds **only** of **religion, race, caste, sex, place of birth**. **15(2)** – no disability re (a) shops, public restaurants, hotels, places of public entertainment; (b) wells, tanks, bathing ghats, roads, places of public resort maintained by State funds/dedicated to public. **15(3)** – special provisions for **women and children** (job reservation for women permissible even without Art 16 provision). **15(4)** – special provisions for **SEBC, SC, ST** (also overrides 29(2)). **15(5)** – special provisions for SEBC/SC/ST **admission to educational institutions incl. private (aided/unaided)**, **except minority institutions under Art 30(1)**.

16(1) – **equality of opportunity in public employment**: right to be **considered**, no right to be appointed; covers matters prior & subsequent to employment, termination/removal, "under the State". **16(2)** – no discrimination on **religion, race, caste, sex, descent, place of birth, residence** (16(1) is wider; no restriction on private persons). **Gazula Dasaratha Rama Rao v. State of AP** – Madras Hereditary Village Officers Act, 1895 (descent); compassionate appointments? **16(3)** – **Parliament** may prescribe **residence requirement**. **Art 17** – **Untouchability abolished**, practice in any form forbidden & punishable; **Protection of Civil Rights Act, 1955**. **Art 18** – **abolition of titles** (Rai Bahadur, Diwan etc.).

Freedoms — Art 19

Natural rights protected by the State; **only citizens**; **not absolute** — **reasonable restrictions** only by **authority of law (not executive order)**, related to purposes in 19(2)–(6). **19(1)(a)** speech & expression (words, writing, printing, picture, film, painting; also parliamentary privileges issue) · **(b)** assembly · **(c)** association · **(d)** movement · **(e)** residence · **(g)** profession,

occupation, trade or business. 19(2) — 8 grounds: **sovereignty & integrity of India, security of State, friendly relations with foreign States, public order, decency/morality, contempt of court, defamation, incitement to an offence**.

Shreya Singhal v. UoI: **Sec 66A, IT Act 2000** (punished e-messages causing annoyance/inconvenience or misleading) struck down — grounds not proximate to any of the 8 subjects in 19(2). **19(6)**: restrictions on 19(1)(g) in interest of general public, incl. (i) **professional/technical qualifications** and (ii) **State trade/monopoly** to exclusion of citizens (**1st Amendment, 1951**). **Betting & gambling** is not trade — game of **chance not skill**. **Slaughter of animals** – butchers' trade vs general public interest; initially economic approach.

Arts 20–24

Art 20(1) – **ex post facto law**: conviction only under law in force at the time; no greater penalty than then. **20(2)** – **double jeopardy**: not prosecuted **and** punished twice. **20(3)** – **self-incrimination**: accused not compelled to be witness against himself. **Forensic techniques** (narco-analysis, polygraph, **BEOS** profiling, DNA, voice spectrography, biometrics): for — aids truth-finding, corroboration, conviction rates; against — may violate **Art 20(3) & 21**, coercive, misuse/human-rights concerns.

Art 21 – no person deprived of **life and personal liberty** except by **procedure established by law**. Life extends to all limbs and faculties (**Bandhua Mukti Morcha v. UoI**). **A.K. Gopalan v. State of Madras (AIR 1950 SC 27)** – Art 21 covers procedural law/executive action, not legislative. **Maneka Gandhi v. UoI (1978)** – procedure must not be unfair/unreasonable; covers legislative action too. Conditions: valid law + procedure + **just, fair & reasonable** + satisfies **Arts 14 & 19**. Life includes environment, livelihood, health, dignity, privacy, education, shelter, sleep; virginity test & telephone tapping (privacy). **Digital Constitutionalism** = applying constitutional values to the digital environment (internet governance, platform regulation, AI ethics, surveillance, data privacy). **Surveillance laws** regulate collection, storage, use of personal data by State (email, phone, CCTV) to protect against terrorism, espionage, cyber-attacks — but raise **privacy** concerns.

Art 22: **(1)** told grounds of arrest + consult legal practitioner of choice; **(2)** produced before nearest magistrate within **24 hours** (excl. journey); **(3)** (1)&(2) don't apply to **enemy aliens** or **preventive detention**; **(4)** preventive detention max **3 months** unless **Advisory Board** (persons qualified as HC Judges) reports sufficient cause; **(5)** grounds communicated + earliest opportunity of representation; **(6)** facts against **public interest** need not be disclosed; **(7)** Parliament may prescribe cases of detention beyond 3 months without Board, maximum period, Board procedure. Preventive detention re defence, foreign affairs, security — by Central Government. **Arts 23–24 – Right against Exploitation**: **23** bans **trafficking, begar & forced labour** (offence; Bandhua Mukti Morcha); **24** – no child **below 14** in **factory, mine or hazardous** employment.

Religion & Minorities — Arts 25–30

Art 25(1) – all persons: freedom of **conscience** and to **profess, practise, propagate** religion, subject to **public order, morality, health**. **25(2)(a)** – State may regulate **economic, financial, political, secular** activity associated with religion (Jehovah's Witnesses opposing war – national security). **25(2)(b)** – social welfare/reform and **throwing open Hindu religious institutions of public character to all Hindus**. **Art 26** – **religious denominations**: (a) establish institutions for religious/charitable purposes, (b) manage own religious affairs, (c) own/acquire property, (d) administer it per law. **Art 27** – no compulsion to pay **taxes** (not fees) specifically appropriated for promoting any religion. **Art 28**: (1) **no religious instruction in institutions wholly maintained by State funds**; (2) exception – State-administered but established under **endowment/trust** requiring it; (3) State-recognised/aided – may have it but **no compulsion** without consent (guardian if minor).

Art 29(1) – any section of **citizens** with distinct **language, script or culture** may conserve it. **29(2)** – no denial of admission to State-maintained/aided institutions on **religion, race, caste, language**. **Art 30(1)** – **minorities (religious or linguistic)** may **establish and administer** educational institutions of their choice (read together – can administer if established; no unusual govt control). **30(1A)** – compensation on acquisition must not abrogate the right. **30(2)** – no discrimination in **grant-in-aid** on minority management.

Art 32 — Constitutional Remedies

32(1) right to move SC for FRs is guaranteed; **32(2)** SC may issue **writs – Habeas Corpus, Mandamus, Prohibition, Quo Warranto, Certiorari**; **32(3)** Parliament may empower other courts; **32(4)** not suspended except as provided by the Constitution.

DPSP — Part IV (Arts 36–51)

Move from **laissez faire** to **welfare state**; "no political democracy without economic democracy"; borrowed from **Irish Constitution**. **Art 36** – "State"; **Art 37** – **not enforceable by any court**, but **fundamental in governance**; duty of State to apply them in making laws. Reasons: positive obligations, financial crunch, framers never intended enforcement; **no mandamus** to implement DPSP; courts should interpret to further DPSP goals. **Conflict with FRs**: initially strict — **State of Madras v. Champakam Dorairajan** (communal quota order); DPSP subsidiary. **Ambedkar**: Constitution lays down political democracy + ideals of economic democracy. **Nehru**: FRs **static**, DPSP **dynamic**. **Golaknath** – both integral; **Kesavananda Bharati** – FR case. **Art 31C** – laws giving effect to DPSP not void for violating **Art 14 or 19**; State laws need **President's assent**.

Art 38 – social order with justice (social, economic, political); minimise inequalities in income, status, facilities (taxation also reduces inequality; linked with 19(1)(d), 21). **Art 39** – (a) livelihood (with 21; **NREGA 2005**), (b)&(c) distributive economic system/socialistic (nationalisation, taking over sick industries), (d) **equal pay for equal work** (**Equal Remuneration Act 1976**; Immoral Traffic (Prevention) Act; Juvenile Justice Act). **39A** – **free legal aid** (Art 21; Kerala Court Fees Act legal service fund; Legal Services Authorities Act). **Art 40** – **village panchayats** (grassroots democracy, Panchayat Raj Act). **41** – right to work, education, public assistance (unemployment, old age, sickness, disablement). **42** – humane conditions of work (Factories Act, **Maternity Benefit Act**). **43** – living wage. **43A** – workers' participation in management. **43B** – co-operative societies. **44** – **Uniform Civil Code**. **46** – interests of SC/ST.

Right to Property & Fundamental Duties

44th Amendment, 1978 abolished right to property as an FR; before 1978 it was in **Art 19(1)(f)** (acquire, hold, dispose) and **Art 31**; natural law, US 5th Amendment; India's socialist impact — abolition of zamindari, slum clearance, nationalisation. **Eminent domain** = private property for public use without owner's consent, **with just compensation**. 19(5) – public interest & Scheduled Tribes.

Fundamental Duties (Art 51A) of every citizen: (a) abide by Constitution, respect its ideals, institutions, **National Flag & Anthem**; (b) follow ideals of freedom struggle; (c) uphold **sovereignty, unity, integrity**; (d) defend country, national service; (e) promote harmony & brotherhood; renounce practices derogatory to **dignity of women**; (f) preserve **composite culture**; (g) protect **environment** (forests, lakes, rivers, wildlife), compassion for living creatures; (i) safeguard **public property**, abjure violence; (j) strive for **excellence**; (k) parent/guardian to provide education to child **aged 6–14**. ((h) is not on the slides.)

UNIT 2 — Federal System: Legislature, Executive & Judiciary

President (Part V, Arts 52–78)

Union Executive = **President, Vice-President, Council of Ministers headed by PM, and Attorney General**; parliamentary form, close to **British model**. **Art 52** – there shall be a President; **Art 53** – executive power vested in President, exercised directly or through subordinate officers per Constitution. **Art 54** – elected by electoral college of **elected members of both Houses of Parliament + elected members of State Legislative Assemblies** (incl. **Delhi & Puducherry**); **nominated members and Legislative Council members cannot vote**. **Art 62** – election before term ends; vacancy (death, resignation, removal) filled **within 6 months**; new President gets a full **5-year** term. **Art 56** – term **5 years**; resigns in writing to **Vice-President** (who informs the **Speaker of Lok Sabha**); removed by **impeachment** for violation of Constitution.

Art 58 – qualifications: citizen; **≥ 35 years**; qualified to be Lok Sabha member (registered voter); no office of profit (President, VP, Governor, Union/State Minister are not offices of profit); not an MP. **Re-election allowed without restriction**. **Art 59**: not a member of any House (seat deemed vacated on taking office); no office of profit; **rent-free residence**; emoluments fixed by Parliament and **cannot be reduced during term**; free medical facilities, treatment for life, state car; "first citizen". Salary: 1951 ₹10,000 (+15,000 allowance); 1985 ₹15,000 (+30,000); 1989 ₹20,000 (+50,000); 1998 ₹50,000; 2008 ₹1,50,000; 2016 ₹5,00,000; 2024 ~₹5.9 lakh. **Rashtrapati Bhavan** – largest residence of any head of state. **Art 60** – **oath before the CJI** (or senior-most SC judge): "preserve, protect and defend the Constitution and the law".

Art 61 – impeachment for **violation of Constitution**: charges by **either House**; resolution signed by **≥ ¼ members**, **14 days' notice**, passed by **⅔ majority**; other House investigates (President may appear/be represented); if it too passes by ⅔, President removed from that date. **Art 361 – immunity**: not answerable to any court for official acts (but conduct may be reviewed by a body appointed by Parliament for impeachment; suits against GoI not barred); **no criminal proceedings** and **no arrest/imprisonment process** during term; **civil proceedings** for personal acts only after **2 months' written notice** stating nature, cause, party details and relief.

Powers — *Executive*: appoints PM & Council of Ministers, SC/HC judges, Governors, Attorney General, CAG, Chief Election Commissioner & members; administers UTs (Chief Commissioners, Lt Governors); removes ministers, Governors, AG; right to be informed. *Military*: **Supreme Commander** of armed forces; appoints chiefs; war and peace in his name. *Diplomatic*: ambassadors are his representatives; receives credentials; negotiates treaties before Parliament's ratification. *Legislative*: first to address Parliament in budget session; summons **joint session** to break deadlock; sanction needed for new State/boundary/name changes, FR-related legislation, **money bills** in Lok Sabha; assent needed for all bills; **ordinances**; nominates members. *Financial*: Finance Commission reports, **Contingency Fund** at his disposal, audit reports laid. *Judicial*: rectify judicial errors, pardons, seek SC advice (legal, constitutional, national importance).

Art 123 – Ordinance: when **neither House is in session** and immediate action needed; same effect as an Act; must be laid before both Houses; ceases 6 weeks after reassembly; may expire if both Houses disapprove; withdrawable anytime; void if unconstitutional. **Art 72 – Pardon** in (i) **court-martial**, (ii) offences against Union-matter laws, (iii) **death sentence**. **Pardon** – fully absolves (as if never committed); **Reprieve** – temporary suspension of death sentence (pending pardon/commutation); **Respite** – lesser punishment on special grounds (e.g. **pregnancy**); **Remission** – reduce quantity without changing character (1 yr → 6 months); **Commutation** – substitute lighter form (rigorous → simple imprisonment). **Emergency powers** (slide under Art 352): national emergency (external aggression/armed rebellion, on recommendation of PM & Council); State breakdown (Governor's rule); financial instability (control expenditure).

Vice-President (Arts 63–71)

Art 63; **ex-officio Chairman of Rajya Sabha**; acts as President on death/removal/resignation, or discharges functions during illness/absence — then gets President's salary and **ceases to be RS Chairman**. Acting period until new President: **max 6 months**. If both offices vacant: **CJI** (or senior-most SC judge) acts — **President (Discharge of Functions) Act 1969** under **Art 70**. Functions (Arts 64, 65): casting vote in tie in RS, represents RS ceremonially, protects members' privileges,

goodwill missions abroad. **Qualifications**: citizen, **35 years**, not an MP, **qualified for Rajya Sabha**, no office of profit [66(4)]; nomination by **20 proposers + 20 seconders**. **Election (Art 66)**: electoral college of **all MPs of both Houses**, **proportional representation by single transferable vote**, **secret ballot**; disputes – SC under **Art 71(1)**; acts done before election declared void remain valid; vacancies in college no ground to invalidate; election before term ends [68(1)], immediately on vacancy [68(2)]. **Oath before President (Art 69)**; no office of profit (Art 64); MP/MLA seat deemed vacated [66(2)]; allowances – Second Schedule (Art 97). **Tenure (Art 67)**: **5 years**, continues until successor; resigns **to President**; **removal: RS resolution by absolute majority + LS agreement by simple majority, 14 days' notice, no inquiry needed**.

Council of Ministers (Arts 74–75)

Art 74(1) – CoM headed by PM to **aid and advise** President; President may ask for **reconsideration once**, then **bound** by advice. **74(2)** – advice tendered **cannot be inquired into by any court**. **91st Amendment 2003**: CoM size ≤ 15% of Lok Sabha / Assembly strength (small States like Sikkim, Mizoram, Goa with < 40 members excepted; States minimum **12** ministers incl. CM; excess reduced within 6 months). Three categories: **Cabinet Ministers** (heads of departments, attend cabinet as of right, can be without portfolio; constitutional status by **44th Amendment 1978**); **Ministers of State** (independent charge, attend cabinet only when invited); **Deputy Ministers** (assist, no separate charge, lower salary, no part in cabinet).

Anti-defection (Art 102(2), 191(2), Tenth Schedule): disqualified if he **voluntarily gives up party membership** or votes/abstains contrary to party direction (unless condoned within **15 days**); a split group of ≥ ⅓ was protected (slide on 164(1B) also says ⅓ defection ends membership and bars ministership). **Art 75**: (1) PM appointed by President; others on PM's advice; (1A) ≤ 15% of LS; (1B) disqualified defector cannot be Minister till term ends/re-elected; (2) **hold office during pleasure of President**; (3) collectively responsible to the Lok Sabha; (4) oaths of office & secrecy (Third Schedule); (5) non-member ceases after **6 consecutive months**; (6) salaries by Parliament/Second Schedule. **Collective responsibility**: every minister stands by Cabinet decisions or resigns; no-confidence vote against PM = against entire CoM. **Individual responsibility** to President [75(2)] — in practice PM asks minister to resign. **Dissolution**: LS term 5 years [Art 83(2)]; President may dissolve earlier on PM's advice [85(b)] or if no viable government. **J. Jayalalitha case**: person convicted & sentenced to ≥ **2 years** cannot be appointed CM under **Art 164(1)**.

State Executive — Governor, CM (Arts 153–167)

State executive = **Governor, CM, Council of Ministers, Advocate-General**; same parliamentary pattern. **Art 153** – Governor for each State; executive power vested in him ("officers subordinate" includes Ministers). **Appointed by President**; one person may be Governor of two or more States. Qualifications: citizen, **35 years**, not from that State, CM consulted. Not a member of any legislature; no office of profit (**Art 158**); emoluments not reduced [158(4)]; **oath before Chief Justice of the High Court** (**Art 159**). **Art 156**: holds office during **pleasure of the President**; resigns to President; 5-year term; continues till successor. Appoints CM and ministers (on CM's advice), **Advocate-General**, State PSC members, **State Election Commission** and State Finance Commission (**Art 243K** on slide).

CM: leader of majority party; if no majority, Governor's **discretion**; min age **25**; oath before Governor. **Art 163(1)** – CoM with CM to aid & advise Governor, **except where he acts in his discretion** (President has no such discretion). Governor's discretion: appointing CM, dismissing minister, dissolving Assembly, advising President on **Art 356**. **91st Amendment** added **164(1A)** (15% cap, min 12) and **164(1B)** (defection). CM powers: link between Cabinet & Governor; forms ministry (Governor cannot insist on names); allocates/reshuffles portfolios; presides over CoM; can seek dismissal/resignation of ministers; **if CM resigns, government collapses**; announces policies; advises summoning of sessions; **Chairman of State Planning Board**; member of **Inter-State Council & National Development Council** (headed by PM); **Vice-chairman of Zonal Council by rotation**; crisis manager in emergencies.

Parliament & State Legislature

Art 79: Parliament = **President + Rajya Sabha (Council of States) + Lok Sabha (House of the People)**; State legislature = Vidhana Sabha + Vidhana Parishad + Governor. India is a **parliamentary republic** with **bicameralism**; follows the **USA**

pattern (both houses elected) rather than UK (House of Lords – nobility/peerage, inherited or for life; House of Commons – elected). **Art 170** – Assembly **60–500** members, direct election; **Art 172** – **5 years**. **Art 171** – Council ≤ ⅓ **of Assembly** (elected from district boards, municipalities, local authorities). **Art 173** – citizen; Assembly **25 years**, Council **30 years**. Disqualifications: office of profit, unsound mind, **undischarged** insolvent (slide: "discharged insolvent"), disqualified by Parliament's law.

Union Judiciary (Arts 124–147)

Preamble places **Justice (social, economic, political)** above Liberty, Equality, Fraternity, and social & economic justice over political. Judiciary — "an arm of the social revolution". SC = **CJI + not more than 7 judges** originally (**now 30**), appointed by President by warrant after consultation; hold office **till 65** [124(2)]; resign to President. **Qualifications**: citizen and **5 yrs HC judge**, or **10 yrs HC advocate**, or **distinguished jurist** (implied: integrity, impartiality, independence). **Art 124(4) – removal**: President's order after address by each House supported by **majority + ⅔ of present and voting**, on **proved misbehaviour or incapacity**. Impeachment attempted **4 times**: **V. Ramaswami J – first (1993, LS, failed ⅔)**; **Soumitra Sen J (Calcutta HC) – resigned 2011 after RS passed motion** (first impeached by Upper House); **J.B. Pardiwala J** (2015, 58 RS MPs, reservation remarks); **C.V. Nagarjuna Reddy J** (2017); **Dipak Misra CJI** (2018 draft).

Jurisdiction: **Art 32** (FR enforcement, writs); **Art 129 – Court of Record** (determine own jurisdiction, **punish for contempt**); **Art 131 – original & exclusive**: GoI vs State(s), GoI+States vs States, State vs State; **Art 132** – appeal if HC certifies **substantial question re Constitution**; **Art 133** – civil (substantial question of law); **Art 134** – criminal: HC reversed acquittal and sentenced to **death**, withdrew case and sentenced to death, or certifies fit case; **Art 136 – Special Leave to Appeal** (discretion, any court/tribunal); **Art 137 – Review** (new evidence, error apparent on record, other sufficient reason); **Art 141** – SC law **binding on all courts**; **Art 143 – Advisory** jurisdiction on President's reference.

State Judiciary (High Courts)

HC is highest court of the State; **one HC can serve two or more States**; number of judges fixed by **President**. Chief Justice appointed by President in consultation with **CJI and Governor**; other judges by President, Governor and HC CJ. Writ powers (**Art 226**) — habeas corpus, mandamus, prohibition, quo warranto, certiorari — for FRs **"or for other purpose"**; superintendence over all courts & tribunals; consulted in appointment of **District Judges**; controls subordinate judiciary; original & appellate jurisdiction (CPC, CrPC, Letters Patent). Qualifications: citizen + **10 yrs judicial office** or **10 yrs HC advocate**. Retires at **62**; resigns to President; after retirement may practise only in SC or HCs where he did not serve. **Art 219 – oath before Governor**. **Removal**: motion by **100 LS members or 50 RS members**; Speaker/Chairman may reject or form **3-member committee**; if guilty, both Houses pass by **special majority**, then President removes.

Emergency (Arts 352–360)

Novel feature: peace-time federalism adapts to emergency (Centre gets overriding power); aim — welfare state, "greatest happiness of greatest number". Three types: **National (352)** – war, external aggression or **armed rebellion**; only on **written recommendation of Union Cabinet headed by PM**; must be approved by Parliament within **1 month**; proclaimed 1962 (China), 1971 (Indo-Pak), 1975 (internal). **State / President's Rule (356 & 365)** – on Governor's report or otherwise; President may assume State functions, give legislative powers to Parliament; approval within **2 months**; slide: State may suspend Art 19 rights during emergency. **Financial (360)** – threat to financial stability/credit; Centre may direct canons of financial propriety and **reduction of salaries**; **44th Amendment** made 360 self-contained: ceases after **2 months** unless approved by both Houses; if LS dissolved (RS approved), ceases **30 days** after new LS first sits unless approved.

Amendment & Basic Structure

Art 368: bill in **either House**; passed in each by **majority of total membership + ⅔ of present and voting**; then **President's assent**; certain provisions need ratification by ≥ ½ **of States** (resolution of State legislatures). **Basic Structure** = fundamental principles forming the backbone of the Constitution. **Shankari Prasad v. UoI (AIR 1951 SC 455)** – 5 judges: Art 368 gives Parliament power to amend FRs. **Golaknath v. State of Punjab (1967 AIR 1643)** – 1st, 4th, 17th Amendments challenged; **11 judges, 6:5** – Parliament **cannot amend Part III**. Kesavananda Bharati (1973) 4 SCC 225 – first laid down Basic Structure; overruled Golaknath; Parliament cannot alter basic structure; Preamble is basic structure.

42nd Amendment added "**Socialist**" and "**Secular**" and clauses **(4) & (5) to Art 368** (after Kesavananda & Raj Narain). Basic structure elements: constitutional supremacy, rule of law, **judicial review**, separation of powers, federalism, secularism, FRs; acts as a legal shield, a "most potent tool" for checks and balances; debate continues on its scope and on applying it to ordinary laws. **Art 370** (special status to J&K) **abrogated 2019** by Presidential Orders & Parliamentary Resolutions; whole Constitution extended to J&K; challenged as violating federalism; **SC (2023) upheld** — Indian federalism is **asymmetric**.

BOOK 1 — *The Story of My Experiments with Truth* (M. K. Gandhi)

The book

Author **Mahatma Gandhi**; originally written in **Gujarati** as **"Satya Na Prayogo"**; translated into English by **Mahadev Desai** (also his personal secretary for many years); first part published **1925**; first serialised in **Navjivan**. Main theme: **spiritual and moral development**; Gandhi saw his life as a series of **Experiments with Truth**. *Gandhi: An Autobiography* is a translation of this book. It covers his life up to **1921** (another Q says it ends with **1920** because **his experiments with truth were largely over**).

Family & early life

Born at **Porbandar**; father **Karamchand Gandhi**, a **Diwan (Chief Minister)**; mother **Putlibai**; family intended him to become a **Diwan like his father**. Married **Kasturba** (called **"Ba"**) in **1883** at age **13**; youngest son **Devdas**. Elder brother **Laxmidas** helped him go to London; mother made him vow **not to touch wine or meat**. Studied law at **University of London**; contracted **pleurisy** there, leading to diet experiments; influenced in London by **Annie Besant**. Ideal of truthfulness: **Raja Harishchandra**. First practised law in **Bombay** but failed due to **shyness and inability to speak in court**; briefly a teacher in **Rajkot**.

South Africa

Went to **South Africa in 1893** for a legal case with **Dada Abdulla & Co.**, mostly for the **Indian merchant community**; stayed about **21 years**. First racial discrimination at **Pietermaritzburg** — **thrown off a train**, sparking his first civil disobedience. Founded **Phoenix Settlement** (first settlement) and started weekly **Indian Opinion**; **Hermann Kallenbach** shared his spiritual & dietary experiments and was a key figure at **Tolstoy Farm**. Protest called **Satyagraha** (= **Truth force**). Organised an Indian **Ambulance corps** in the **Boer War**; **Black Act** protest against law requiring Indians to carry **registration certificates**; first jail in **South Africa** — **1908** for **refusing to register**; **Great March 1913** for **Indian indentured labourers**. Cleaned his own toilet after **discrimination against a visitor** in SA. Influences: Ruskin's **Unto This Last** (economic views), Tolstoy's **The Kingdom of God is Within You**, **Thoreau** (civil disobedience).

Return to India & movements

Returned **1915**; political guru **Gopal Krishna Gokhale**; received **Kaiser-i-Hind medal** in 1915, returned it after **Jallianwala Bagh (1919, General Dyer)**. **Sabarmati Ashram**, Ahmedabad, **1917**; **Sevagram** in **Wardha, Maharashtra**. First major movement: **Champaran Satyagraha (1917)**, brought by **Rajkumar Shukla**; led to **Champaran Agrarian Act** benefiting **indigo farmers**. **Kheda**: peasants' **tax relief due to famine**. First major fast in India **1918** for **Ahmedabad** mill workers. Opposed **Rowlatt Act** (imprison without trial); supported **Khilafat** to **promote Hindu-Muslim unity**. Adopted dhoti in **1921**. Suspended Non-Cooperation (1922) after **Chauri Chaura**. 21-day fast **1924** for **Hindu-Muslim unity**. Simon Commission boycotted — **no Indian members**. **Bardoli Satyagraha 1928** led by **Vallabhbhai Patel**. **Dandi March 1930** (salt tax), **~240 miles**, started in **Gujarat**; British PM then **Ramsay MacDonald**. **Gandhi-Irwin Pact 1931**. 1932 fast against **Communal Award** → **Poona Pact** with **B. R. Ambedkar**. Rejected **August Offer 1940** (no immediate independence); **Cripps Mission 1942** failed (no full independence); **Cabinet Mission 1946** initially **accepted by Gandhi**. **Quit India 1942**, slogan **"Do or Die"**; jailed in **Aga Khan Palace**, where **Kasturba (1944)** and **Mahadev Desai** died; palace later donated in memory of **Mahatma Gandhi**. On **15 Aug 1947** he was in **Calcutta**. Assassinated **30 Jan 1948** at **Birla House, Delhi**; last words **"Hey Ram"**; cremated at **Raj Ghat**.

Ideas, titles & terms

Title **"Mahatma" (= Great Soul)** given by **Tagore**. Fundamental principle: **Truth**; essence of religion: **Truth and Non-violence**; all religions are **equal paths to truth**; **means as important as ends**. **Ahimsa** = non-violence ("an eye for an eye makes the whole world blind"); **Swaraj** = self-rule; **Sarvodaya** = welfare for all; **Swadeshi** = home-grown industries & goods; **Aparigraha** = non-possession; **Asteya** = non-stealing; **Trusteeship** = wealth distribution; **Ram Rajya** = utopian state

of truth and justice; **Talisman** = think of the **poorest and weakest**. One of 11 ashram vows: **Fearlessness**. **Silent Mondays** – spiritual rest & conserving energy. Diet: **mango** led to fruit-diet belief; tried **giving up salt**; preferred **nature cure** (skeptical of modern medicine). Education: **Basic Education (Nai Talim) — craft alongside academics**. Revived **Khadi** (hand-spinning & weaving); **Charkha** = **economic self-sufficiency**; **Constructive Programme** = social reform & self-reliance; villages – **self-sufficiency & decentralisation**; critical of industrialisation, favoured **small-scale village industries**. **Hindi (Hindustani)** as unifying language. Wrote **Hind Swaraj** (in **Gujarati**, on a voyage); started **Navjivan** (Gujarati) and **Harijan** (cause of **Dalits**). **Vaikom Satyagraha** = **temple entry for Dalits**. Philosophy = **holistic approach to life**; turned INC into a **mass movement**; women's rights **progressive for his time**; conflict resolution by **dialogue & non-violent pressure**; favourite song **"Raghupati Raghava Raja Ram"**; Nehru – **fatherly mentor and friend**; wrote to Hitler to **plead for peace**; **never** received the Nobel Peace Prize; influenced **Martin Luther King Jr.**; **Abdul Ghaffar Khan** = "Frontier Gandhi". **2 October** = **International Day of Non-Violence**, declared by UN in **2007**.

BOOK 2 — *My India: The India Eternal* (Swami Vivekananda)

The book & core message

Published by **Ramakrishna Mission Institute of Culture**. Soul of India = **Spirituality**; India's decline caused by **loss of spiritual values**; regeneration founded on **spiritual awakening**; value to revive for national pride = **spirituality**; India's future lies in **spiritual awakening and service**, guided by **spirituality**. India's destiny/mission: **spiritual guide for humanity** — "**India shall guide the world spiritually**", **offer spiritual leadership**, share **spiritual insights, tolerance and inner strength**; it is **India's duty to share** the message. India's spiritual contribution/values are **universal and eternal**; heritage is **India's greatest gift to the world**; ancient civilisation **spiritually advanced**; ancient culture = **foundation of India's greatness**; scriptures contain **eternal truths**; **Nalanda** etc. were centres of **spiritual and intellectual excellence**. Unity lies in **spiritual values**; spiritual unity = **foundation of national strength**; unity is **essential for national strength**. Villages = **heart of India**. River revered: **Ganga**. Festival of awakening: **Durga Puja**. Scripture quoted for national pride, moral strength ("epic") and action: **Bhagavad Gita**. Western thinker admired: **Emerson**. Metaphor for India's dormant spiritual power: a sleeping lion (also in "Stirring Utterances": sleeping lion that must awaken).

Strength, fear, faith

"Strength is life, weakness is death"; greatest sin = **weakness** ("The greatest sin is to think yourself weak" → **undervaluing one's own potential**). Strength (primary need) = **physical, moral and spiritual vigour**; strength needed for regeneration and to overcome adversity; physical strength **essential for national regeneration**. **Fear must be conquered** (for spiritual growth and to build the nation); quality most lacking under colonial rule: **Courage**; courage = **foundation of strength**; fearlessness → **moral courage, independence of mind, readiness to act for truth and service**. Faith in oneself = **foundation of strength**; faith in **oneself and the nation** essential; self-confidence = **key to national awakening**; self-reliance = **key to national regeneration**; main obstacle to progress = **lack of faith in one's own self**. Thought **shapes destiny**; action = **expression of (spiritual) strength**. Spiritual knowledge must be accompanied by **humility**. Ideal youth: **"Strong, fearless, and full of faith"**.

Youth, women, education

Key to India's future: **Youth** — **builders of the future**, **agents of social transformation**; message: **be proud of your heritage and serve the nation**. Women must be **educated and empowered**; women's education **vital for national progress**. Education must **build character and self-confidence**; character = **true goal / foundation of education**; education builds **character, confidence and usefulness to society**. "**Education is the manifestation of perfection already in man**" → draws out **inner potential and divinity**. Teacher should **inspire independence and courage**; criticised education giving **superficial knowledge without character**; colonial education **ignored India's soul**.

Service, religion, society

Uplift nation by **serving the poor and downtrodden**; best way to serve God = **serving humanity**; service to poor = **highest form of worship**; service = **highest form of religion**; temples & rituals are **secondary to service**; monks should **serve humanity/society**. Poverty = **national shame**, a **moral and social problem** needing education, uplift and practical measures. Caste discrimination **condemned as divisive**; caste a **social evil when rigidly hereditary — duties and merits matter, not birth**. Blind ritualism → **superstition**; superstition **must be eradicated**; blind faith → replaced by **reason and experience**. Religious tolerance **essential for unity**; **Dharma** = foundation of tolerance; **Tolerance** = key to universal brotherhood; **Universal acceptance** can unite the world (= recognising **unity behind diverse religions while critiquing harmful practices**); pluralism: **pluralistic, non-exclusive**. Conversion **weakens national identity**. Religion should **guide moral and social conduct**. Social reform guided by **Compassion**. Spiritual teachers/saints = **true leaders**, **true heroes**, **torchbearers of India's soul**. National pride **essential for progress**. Indians abroad should **represent India's spiritual heritage**.

India & the West; philosophy

Visited the **United States**. Warned against **blind imitation of the West** (it **weakens India's identity**); "**Learn everything that is good from others, but do not lose your own identity**" → absorb useful knowledge, preserve individuality; learn the West's **organisation, science, industry** while keeping spiritual strengths. West's materialism must be **balanced with India's spirituality**; critique of West = **spiritual emptiness despite material power**. Value misunderstood by West: **Renunciation**; renunciation = **renouncing selfishness + active service**. Material progress valuable **if subordinated to moral/spiritual ends**; national progress needs **moral, spiritual, intellectual uplift of masses alongside material**. Answer to missionaries: **strengthen own spiritual & social institutions**. Science & religion: **complementary**. **"Atman is Brahman"** = identity of individual Self with ultimate Reality (**non-dual**); Upanishadic basis of service = **divinity of the Self, same Self in others**. **Practical Vedanta** → social welfare, education, human dignity. Style: **emotional patriotism + philosophical reasoning**; **lofty metaphysics + concrete calls for reform & education**. National integration = **unity of thought, character and purpose**; "**Strengthen the mind of the nation…**" → **strong, virtuous, self-reliant citizens**.

Life events

Spiritual master: **Ramakrishna Paramahamsa**; convinced Ramakrishna had realised God by the **divine ecstasy and sincerity in his reply**. **Father's death** brought poverty. After Ramakrishna's passing disciples formed brotherhood at **Baranagar Math**. Vowed to **travel barefoot and know the real India**; wandered **to know India and experience its people's lives**; saw masses suffering **poverty, ignorance, lack of education**; touched by villagers' **devotion and simplicity despite poverty**. **Alwar** taught: **true religion = serving people, not rituals**. Meditated on **Kanyakumari Rock** before going West — saw the **vast ocean and rocky island**; insight: **regeneration must start with uplift of the poor and masses**. **Maharaja/Raja of Khetri** helped him go to America and financially during early wanderings. Went West **to spread the true message of Vedanta**. **Chicago Parliament of Religions**: message — **all religions are true and lead to the same God**; reaction — **thunderous applause**; style — **humble yet commanding, rational yet spiritual**; symbolises his **universal outlook**. (Answer key quirks: "first recognition as world teacher" → key says **"His visit to Mysore"**; "event that strengthened faith in India's spiritual power despite poverty" → key says **"Western admiration"**.) Founded **Ramakrishna Mission (1897)** — HQ **Belur Math**; motto **"Atmano mokshartham jagat hitaya cha"**; work = **selfless service to poor, sick, needy as service to God**; its founding = **fusion of spirituality and service**. **1899** Bengali journal **Udbodhan**. Final years and **Mahasamadhi at Belur Math**. Admired for **eloquence, compassion, spiritual insight**. Espoused **all of the above**: faith in yourself, never a life of secrecy, integrity.

People & quotes

Swami Brahmananda	Ramakrishna's "spiritual son"
Swami Trigunatitananda	went to America to spread Vedanta
Sister Nivedita	schoolteacher from Ireland; "He preached unto mankind their divinity…"
Josephine MacLeod	"friend and mother"
Captain & Mrs Sevier	Advaita Ashrama, Mayavati
Chapter "Some Men Who Were with Swamiji"	gratitude and love for co-workers
Subhas Chandra Bose	"maker of modern India"
Rabindranath Tagore	"Study Vivekananda to understand India"
Sri Aurobindo	"spiritual father of modern nationalism"
Romain Rolland	"greatest figure of the spiritual East"; "words are great music… Beethoven"
John Henry Wright	"a representative of all humanity"
Max Müller	"created a stir in America greater than any other Hindu"
Mahatma Gandhi	love for country "a thousand-fold" → deepened patriotism via spiritual ideals

Quotes → meaning: "**Arise, awake, and stop not till the goal is reached**" (awaken masses) · "**Take up one idea…**" → devote fully to a single purpose · "**The world is the great gymnasium…**" → challenges build inner strength · "**All power is**

within you" → India's inherent strength must be awakened · "**Talk to yourself once in a day…**" → self-reflection · "**Do not wait for anybody or anything**" → personal effort & initiative · "**Be not afraid of anything…**" → fearlessness, self-confidence, initiative.